

Migrant Applicants

Policy: WIC staff must make every effort to reduce barriers that could prevent migrant individuals from receiving WIC Program benefits.

Regulations: CFR 246.2, CFR 246.7(c) & (d)(2)(ix)

Procedure/Additional Guidance:

Definition of Migrant Farm Worker

An individual whose principal employment is in agriculture on a seasonal basis, who has been so employed within the last 24 months, and who establishes, for the purposes of such employment, a temporary abode."

- "Principal employment" means over 50 percent of the migrant farm workers job is in agriculture.
- "Agriculture" means farming in all its branches and includes:
 - o Cultivation and tillage of the soil.
 - o The production, cultivation, growing, and harvesting of any commodity grown in or on the land, or as an adjunct to or part of a commodity grown in or on the land.
 - o Any practice (including preparation and processing for market and delivery to storage or to market or to carriers for transportation to market) performed by a farmer, on a farm, or in conjunction with an activity described in "Agriculture" (above).
- A worker establishes a "temporary abode" when the worker's job location requires him to leave his place of regular residence periodically, not permanently, for one or more 24 hour periods. An automobile, van, or camper may be considered a "temporary abode" when used for temporary residence.
- The decision to include work as a migrant farm worker in the last 24 months was made because barriers to participation in local health services, including WIC, may not immediately be overcome when a participant no longer works as a migrant farm worker.

Migrant farmworkers and their families are at risk of poor nutrition due to low or seasonal income, isolation from dangerous working conditions, exposure to environmental hazards, inadequate housing and often lack of formal education and the English language. For these reasons, migrant farmworker families are a priority for WIC and may need referrals to health providers and local resources.

In order to identify a migrant farmworker or a member of a migrant farmworker family the following questions should be asked to screen for migrant status.

In the past two years:

- Do you, or does someone in your family, work in agriculture – the farm fields, nursery, tree farm?
- Is that work a major source of your family's income?
- Have you, or has someone in your family, moved away from your regular home to do this kind of work?

If client answers "yes" to all questions, they must be considered a migrant farm worker according to the Colorado WIC Program.

Providing WIC Program Services to Migrant Farm Workers

In order to overcome the barriers to migrant farm worker participation and provide quality services, the State and local agencies must do the following.

- Provide a Verification of Certification (VOC)
Staff should provide a Verification of Certification (VOC) form at the first participant visit so that if the participant moves, he/she does not need to be certified in each area to which they travel. The agency must provide program benefits until the certification period written on the VOC expires.
- Complete Income Determination
The income of a migrant farm worker family must be determined at least once a year. Any determination that a migrant farm worker has met the income guidelines, either in the migrant farm worker's regular home location

before beginning farm work for a particular agricultural season or in another area during the agricultural season, shall satisfy the income criteria for the migrant farm worker participant in any state for any subsequent certification during that agricultural season. (This procedure applies only to migrant farm workers.) If there is no indication on the VOC form that this was completed, the local agency must determine financial eligibility at the next certification. Lack of documentation for income should not be a barrier for migrant farm worker families to receive WIC benefits. Farm workers who are unable to provide documentation of income may self-declare their income by signing an affidavit.

- **Ensure no Double Food Issuance**

It is likely that individuals will receive and redeem food benefits in one state just prior to departing to another state. When they present their VOC cards in the second state, they may still be within the 30-day period of the previous food issuance. Staff must ensure that the participant does not receive double benefits. If benefits have been redeemed for the current month, staff may not provide benefits until the next month. Staff must collect and destroy unused benefits. If benefit information is unavailable, staff should call the previous clinic to verify if the participant has redeemed the benefits.

- **Tailor Food Packages**

Staff may tailor food packages to meet the participants' individualized needs. With eWIC, participants can purchase as many or as few items as desired per shopping trip and have the option to purchase canned or powdered milk in lieu of fresh milk and canned beans or peanut butter in lieu of dry beans. Participants with a poor water supply, no refrigeration, or limited storage may prefer to have food packages with options such as ready-to-feed formula, juice in individual serving containers, shelf stable (UHT) milk, extra peanut butter or beans instead of eggs (at the substitution rate of 18 oz peanut butter or 1 pound beans for 1 dozen eggs).

- **Follow Processing Standards for Certification and Priority Determinations**

The local agency must notify the migrant farm worker applicant of his/her eligibility within 10 calendar days of the first request for program benefits. Normal screening procedures will be used and all applicable nutrition risk factors assigned. At a minimum, these applicants must be considered at nutritional risk solely because of their migrant farm worker status. The applicant will be given a priority rating (1-6) using the same criteria as for all WIC participants.

In cases where a local agency is at the maximum participation level and the state has no additional funds to provide to the agency, a person with a valid VOC must be placed ahead of all other persons on a waiting list. This is because any participant with the current certification is entitled to continue receiving program benefits before a person who is not yet participating in the program. If a migrant farm worker with a current VOC arrives, he/she should be placed first on the list. However, if a migrant farm worker participant arrives with an expired VOC at an agency at maximum participation, he/she should be placed on the waiting list according to the priority rating, as any other potential participant.

- **Provide Nutrition Education**

Providing comprehensive nutrition education to migrant farm worker participants can be challenging due to the participant's transient lifestyle. Because a participant may only be enrolled for a short period of time, ongoing, long-term education goals may not be appropriate. Although they may have access to nutrition education, often they are not in an area long enough to benefit continuously from any comprehensive nutrition education program designed by a state or local agency. In some instances, language barriers exist which also add to the difficulty of supplying appropriate nutrition education to migrant farm worker families.

Many migrant farm workers have participated in WIC Programs in other states where food delivery, allowable foods, and the method of payment (i.e. eWIC card) are very different. Therefore, priority topics for education should include:

- ✓ How to use WIC food benefits.
- ✓ A description of WIC allowable foods in Colorado.
- ✓ How to use the WIC foods with limited storage and cooking equipment.

Nutrition education concerning food preparation should be suited to the participant's situation. For instance, many migrant farm worker parents work in the fields for long hours and do not have time to prepare complicated meals. Tips on food preparation in nutrition education sessions should take this into consideration.

Printed Spanish nutrition education materials are available from the State WIC Office and online versions are available on the USDA WIC Works Resource System. Refer to the [CO WIC Program Materials Order Form](#) posted on the Colorado WIC Program web site for the complete listing.

Migrant farm workers in Colorado are from various ethnic groups. It is important that those providing nutrition education understand the ethnic dietary practices of these groups. One of the most important factors in teaching nutrition to various cultural groups is to point out the positive aspects of the diet and suggest only those changes that will fit into the lifestyle of the family.

- **Conduct Outreach**
Outreach to migrant farm worker participants is needed more than outreach to the general WIC population because their newness to the area often means they do not know where to obtain WIC services. Outreach is also necessary to overcome the isolation from the main population, which is inherent to the migrant farm workers' lifestyle.
- **Contact Farm Worker Groups**
Local farm worker organizations are another important community resource for assistance in reaching migrant farm worker participants. Migrant farm workers usually know these organizations and the organizations are very familiar with the situations of migrant farm workers in their area. Some farm worker organizations may be willing to assist the local agency in conducting outreach, or the local agency may wish to contract with the organization for outreach services. At a minimum, these groups can provide information on when to expect migrant farm workers to arrive, how many usually come, how long they will stay and where they are likely to live.
- **Offer Flexibility of Services**
Another very important factor in serving migrant farm workers is flexibility of service hours. Since farm work is so unpredictable, migrant farm workers must work when employment is available. If the mother or other adult responsible for WIC appointments is working in the fields, she or he may be unable to make appointments during daytime clinic hours. One solution to this problem is for the WIC staff to schedule after-hour clinics for certification appointments and then offer alternate nutrition education methods for follow up visits, such as wichealth.org or a telephone or interactive video call while still providing an effective second nutrition education contact. If the participant chooses an alternate nutrition education method for the follow up visit, food benefits can be issued remotely.

Holding a WIC clinic at the migrant farm worker camp is an effective way to reach the participants. Such an approach would remove transportation problems of those who have no way to reach WIC clinics.

Additional Resources for Migrant Farm Workers

Health service locations can be accessed through the Bureau of Primary Health Care, a division of the U.S. Department of Health and Human Services at <http://www.bphc.hrsa.gov/>.

Information on legal services can be accessed through Colorado Legal Services, Inc., Farm Worker Division, (303) 866-9366 or 1-800-864-4330.

Other information for or about migrant farm workers is available through the National Center for Farmworker Health, Inc., 1-800-531-5120, <http://www.ncfh.org/>.